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***436 Think Promotions Ltd, David Heller v All England Lawn Tennis Club (Wimbledon) Ltd**



No Substantial Judicial Treatment

Court

Office for Harmonization in the Internal Market (Cancellation Div)

Judgment Date

21 December 2004

Report Citation

[2006] E.T.M.R. 36

Cases 621C 00207886/1

638C 000207866/2

Office for Harmonisation in the Internal Market (Cancellation Division)

Wouter Verburg , Alvaro Sesma and Julia Garcia Murilo :

21 December 2004 ¹

Cancellation; Community trade marks; Declarations of invalidity; Geographical indications; Sporting events;

H1 Community trade mark—WIMBLEDON (goods and services in various Classes)—Application for cancellation—Whether mark an indicator of source or a word needed by other traders—Application dismissed.

H2. Wimbledon is the name of a suburb in south-west London, in the United Kingdom, which is also the venue for a well-known annual tennis tournament widely known as “Wimbledon”. The tournament was organised and promoted by a tennis club which was the proprietor of the WIMBLEDON Community trade mark for goods and services in numerous Classes.

H3. The applicant applied for the mark to be invalidated under [Art. 7\(1\)\(c\) of Council Regulation 40/94](#) on the basis that, being a geographical place name, the registered mark did not act as an indicator of source and other local traders should also be able to use the word “Wimbledon”.

The tennis club maintained that the WIMBLEDON mark was validly registered in that it had acquired distinctiveness in respect of the proprietor's goods and services.

H4. Held, by the Cancellation Division, that the application for a declaration of invalidity would be rejected.

H5. 1. The registration of geographical names which solely designate specific geographical locations that are already famous, or that are known for the category of goods concerned or which are used by undertakings and which must remain free for such undertakings to use as indications of the geographical origin on their goods, is prohibited. However, names of places which are unknown as geographical locations to the relevant class of consumers, or which designate places that consumers would not believe that the type of goods in question originated therefrom, may be registered. *437

H6. 2. WIMBLEDON is a geographical name but it did not automatically follow, from that fact that it was a geographical name, that it would serve as an indication of geographical origin when used in trade. English and other European Union consumers of the relevant goods and services would link WIMBLEDON with the tennis championship, but this link did not of itself indicate geographical origin. The relevant question was whether WIMBLEDON currently designated, or was likely in the future to designate, a place currently associated with the category of goods or services in question in the mind of the relevant trade circle.

H7. 3. Consumers would not see WIMBLEDON as suggestive of any geographical location for the goods in Classes 3, 9, 14, 16, 18, 24, 25 and 26 because WIMBLEDON was not an area where the quality or characteristics of the goods in those Classes was essentially attributable to its location. The fact that there were already companies in Wimbledon which produced or sold such goods did not of itself mean that WIMBLEDON would serve as a pure indicator of geographical origin.

H8. 4. Since the word WIMBLEDON would be seen as a trade mark, and not as an indication of geographical origin, it was not barred from registration under Art.7(1)(c) . The fact that WIMBLEDON was a geographical name did not, of itself, preclude it from registration. The same analysis was true for the services connected with the production and organisation of

sporting events in Class 41, even though some consumers would view the term WIMBLEDON as being connected with the tennis championship or the local football club.

H9. 5. Although the WIMBLEDON sign might have had a high commercial value because consumers would link it with the tennis championship, that fact did not render it a pure geographical origin for goods or services, whether they were related or unrelated to the tennis championship.

H10. 6. Local commerce would still be able to use the term “Wimbledon” as there is a defence under [Art.12 of Regulation 40/94](#) in respect of the use of an indication concerning geographical origin in a way which is consistent with honest practices in industrial or commercial matters.

H11 Cases referred to:

Nordmilch v OHIM (OLDENBURGER) Case T-295/01 [2003] E.C.R. II-4365; [2004] E.T.M.R. 70
Windsurfing Chiemsee Produktions- und Vertriebs GmbH (WSC) v Boots- und Segelzubehör Walter Huber, Joined Cases C-108/97 and C-109/97 [1999] E.C.R. I-2779; [1999] E.T.M.R. 585

H12 Legislation referred to:

[Council Directive 89/104, Art.3\(1\)\(c\)](#)
[Council Regulation 40/94 on the Community trade mark, Arts 7\(1\)\(c\), \(3\), 12, 81](#)
[Commission Regulation 2868/95 implementing the CTMR, rr.41, 94](#)

Representation

For the applicant: Wilson , Gunn, M'Caw (trade mark attorneys).

For the proprietor: Boulton Wade Tennant (trade mark attorneys). *438

DECISION

Facts and arguments

1. On 22 May 2003 Think Promotions, and on 9 June 2003 David Heller (“the applicants”) filed a request for a declaration of invalidity based on absolute grounds against Community trade mark (“CTM”) no.207886 WIMBLEDON (word mark).

2. The CTM was applied for on 1 April 1996 and registered on 18 June 1998; it is registered for:

Perfumes, cosmetics, non-medicated toilet preparations and soaps in Class 3;

Video and sound recording and reproducing apparatus; magnetic, laser and holographic recording materials for use with the aforesaid apparatus; photographic apparatus; parts and fittings for all the aforesaid goods, camera straps, camera and binocular cases; spectacles, spectacle frames, sunglasses and spectacle cases in Class 9;

Jewellery and imitation jewellery; clocks and watches; cufflinks, tie clips, stickpins, watch fobs, money clips and key rings in Class 14;

Printed publications, books and stationery; ordinary playing cards, office requisites, files, folders and boxes, all for sorting paper and stationery; address books, memo pads, diaries, blotter in Class 16;

Articles of luggage; bags, briefcases, attaché cases, document cases, cases of leather or imitation leather; articles of leather or imitation leather for personal use in Class 18;

Garden furniture and parts and fittings therefore; cushions in Class 20;

Domestic furniture and parts and fittings therefore; cushions in Class 20;

Domestic utensils and containers, combs and brushes; sponges; glassware; porcelain and earthenware; sculptures; figurines in Class 21;

Bed blankets, bed covers, bed linen, towels, dish cloths, glass cloths, table cloths, table napkins and table mats, all made of textile materials; articles of household linen in Class 24;

Articles of sports clothing, shirts, T-shirts, skirts, dresses, shorts, trousers, sweaters, sweat shirts, jackets, suits, blazers, hats, scarves, headbands, wristbands, jeans, socks and headscarves; sports shoes in Class 25;

Badges, emblems; patches; broaches; buttons in Class 26;

Sporting articles, games and toys in Class 28;

Producing, organising and staging sports competitions; production of sporting events for radio, film and television, provision of recreational facilities in Class 41.

3. The requests are based on [Art.7\(1\)\(c\) of Council Regulation 40/94 on the Community trade mark](#) (“CTMR”). Wimbledon is a large residential suburb of south-west London, England. Wimbledon is recognised purely as a term of geographical reference. Thus, the CTM should be cancelled. A copy of the website www.gazetter.co.uk was attached. ***439**

4. The applicants file their request for a declaration of invalidity in respect of all goods and services covered by the CTM.

5. On 13 August 2003 the CTM proprietor was notified of the requests. The proprietor filed observations on 13 November 2003 to which the applicant replied on 17 February 2004. The CTM proprietor filed further observations on 19 March 2004 to which the applicant replied on 28 May 2004. On 11 June 2004 the parties were informed that the case was ready for decision.

6. The CTM proprietor argues that Art.7(1)(c) CTMR is not applicable as the CTM does not serve in trade as a geographical indication for the concerned goods and services. If the CTM serves in trade as a geographical indication, it is claimed that the trade mark has acquired distinctiveness through use and benefits from Art.7(3) CTMR .

7. The applicants for cancellation added in their observations in reply, the following: Wimbledon may serve in trade as a geographical indication. The following evidence in support was attached: extracts from London South West Yellow pages directory, extracts from the 2004 Time Out London Guidebook ; extracts from The Colombia Lippincott Gazetteer of the World 1992; Webster New Geographical Directory 1972; Bartholomew Gazetteer of Places in Britain 1986, and Chambers World Gazetteer 1988; and an extract of a London A-Z Street Map . From said evidence it follows that Wimbledon is the name of a district in the south-west of London. A series of internet references from the website *www.mywimbledon.com.uk* and *www.yell.com* were attached. Said websites confirm the existence of wide-spread local business and retail and presence in Wimbledon. Local commerce in the suburban area known as WIMBLEDON should be entitled to utilise the geographical reference in relation to goods brought, sold or sourced from their area, regardless of whether or not they may be manufactured within the confines of this area. The listings of the referred websites show amongst others, companies who trade as for example Elys (Wimbledon) Plc, Wimbledon Books and Music, Wimbledon Publishing Co. Ltd, Wimbledon Fireplaces, Wimbledon Electrical Wholesale. It is not challenged that the International Tennis Tournament takes place at premises based in Wimbledon. This does not in itself however provide the organisers of that tournament with the monopoly rights to register the name of the area in which the tournament takes place as a trade mark for a wide variety of goods and services. Indeed there are many other organisations which utilise the term WIMBLEDON in relation to sporting events within the area known as Wimbledon, in particular Wimbledon Football Club and AFC Wimbledon Football Club. Internet extracts of those entities were attached. In sporting circles the term Wimbledon is as synonymous with football as it is with tennis. The term WIMBLEDON is used by a number of organisations other than the All

England Lawn and Tennis Club in relation to their activities and operations, as can be seen from extracts obtained from the search engine *www.google.co.uk* . *440

Grounds for decisions

On the admissibility of the request

8. The requests comply with formalities prescribed in the CTMR and [[Commission Regulation 2868/95](#) implementing the CTMR ,] the “Implementing Regulation” (“IR”) and are, therefore, admissible.

9. In accordance with r.41 IR , as both cancellation requests, 621C 00207886/1 and 638C 00207866/2, relate to the same CTM, are based on the same invalidity ground of Art.7(1) (c) CTMR and the representative of the applicants are the same, it was decided to join the proceedings.

On the substance

10. The request is unfounded. Article 7(1)(c) CTMR is not applicable.

11. The Court of Justice held in its judgment of *4 May 1999, in Joined Cases C-108/97 and C-109/97 Windsurfing Chiemsee [1999] E.C.R. I-2779* , as regards [Art.3\(1\)\(c\) of Council Directive 89/104](#) which corresponds to Art.7(1)(c) CTMR that:

“ [Article 3\(1\)\(c\) of the First Council Directive 89/104/EEC of 21 December 1988](#) to approximate the laws of the Member States relating to trade marks is to be interpreted as meaning that: — it does not prohibit the registration of geographical names as trade marks solely where the names designate places which are, in the mind of the relevant class of persons, currently associated with the category of goods in question; it also applies to geographical names which are liable to be used in future by the undertakings concerned as an indication of the geographical origin of that category of goods; — where there is currently no association in the mind of the relevant class of persons, capable of designating the geographical origin of that category of goods; — in making that assessment, particular consideration should be given to the degree of familiarity amongst the relevant class of persons with the geographical name in question, with the characteristics of the place designated by that name, and with the category of goods concerned; — it is not necessary for the goods to be manufactured in the geographical location in order for them to be associated with it.”

12. The *Court of First Instance in the judgment in Case T-295/01 Nordmilch v OHIM (OLDENBURGER)* stated at [29]–[31] and [32] that Art.7(1)(c) CTMR pursues an aim which is in the public interest, namely that descriptive signs or indications relation go the categories of goods or services in respect of which registration is applied for may be freely used by all. The provision therefore prevents such signs or indications from being reserved to one undertaking alone because they have been registered as trade marks (see, by analogy, *Windsurfing Chiemsee* at [25]). As regards, more particularly, signs or indications which may serve to designate the geographical origin of the categories of goods in relation to which registration of the mark is applied for, especially geographical names, it is in the public interest that they remain available, not least because they may be an indication of the quality and other characteristics of the categories of goods *441 concerned, and may also, in various ways, influence consumer tastes by, for instance, associating the goods with a place that may give rise to a favourable response (see, by analogy, *Windsurfing Chiemsee* at [26]). Furthermore, it may be observed, first, that the registration of geographical names as trade marks solely where they designate specified geographical locations which are already famous, or are known for the category of goods concerned, and which are therefore associated with those goods in the mind of the relevant class of persons, is excluded as, secondly, is the registration of geographical names which are liable to be used by undertakings and must remain available to such undertakings as indications of the geographical origin of the category of goods concerned (see, by analogy, *Windsurfing Chiemsee* at [29] and [30]). However, Art.7(1)(c) CTMR does not in principle preclude the registration of geographical names which are unknown to the relevant class of persons—or at least unknown as the designation of a geographical location—or of names in respect of which, because of the type of place they designate, such persons are unlikely to believe that the category of goods concerned originates there (see by analogy *Windsurfing Chiemsee* at [33]).

13. Wimbledon is a geographical name. It is “part of the Greater London borough of Merton; headquarters of the All England Lawn Tennis Club since 1877 and the site of the annual international tennis championships”; Collins English Dictionary Edition 1996. From the mere fact that Wimbledon is a geographical name it does not follow that it may serve in trade in relation with the goods and services from the perspective of the relevant consumer as an indication of geographic origin. In the mind of the consumer the term Wimbledon is linked with the tennis championship for the English consumer and for the consumer of the European Community, but this, in itself, does not denote geographical origin. The relevant question is whether WIMBLEDON designates a place currently associated in the mind of the relevant trade circles with the category of goods and services concerned, or whether it is reasonable to assume that such an association may be established in the future.

14. For the goods concerned in Classes 3, 9, 14, 16, 18, 24, 25 and 26—see [2] in the facts of the decision—it is unlikely that the consumer will consider that Wimbledon suggests any geographical origin. Wimbledon is not an area where a given quality or other characteristics of said goods are essentially attributable to its location. In such circumstances it is unlikely that

the word Wimbledon would be seen as an indication that denotes geographical origin from the perspective of the consumer when applied to the goods concerned. The fact that companies exist in Wimbledon producing or selling the concerned goods on their own is not sufficient to presume that WIMBLEDON serves or will serve in trade as a pure indication of geographical origin for said goods. From the available data it cannot be concluded that the consumer will perceive the geographical name WIMBLEDON as a pure indication of geographical origin, it will be seen as a trade mark. Thus, for the goods concerned, Art.7(1)(c) CTMR is not applicable since, when the mark is used in trade, it is not perceived as a geographical indication. The prohibition set by Art.7(1)(c) relates to “signs or indications which may serve in trade to designate the geographical origin of the goods”. This language limits the registration only to those marks which are perceived as geographical indications or expected to be perceived as such in the near future when used in trade. Cases where the sign is not perceived as a geographical indication when it is used in trade may be accepted for **442* registration purposes notwithstanding that it is a geographical name. (In accordance with said practice the following trade marks have been registered by the Office: no.1013424 ROMA (word mark) registered on 27 March 2000 for goods and services in Classes 9, 39 and 42; no.18112762 ROMA (word mark) registered on 17 September 2001 in Classes 20 and 39; no.628958 PARIS (word mark) registered on 20 January 1999 for goods in Class 9 and no.161709 BARCELONA (word mark) registered on 12 July 2001 for goods and services in Classes 35, 38 and 42, etc)

15. For the “services producing, organising and staging sports competitions; production of sporting events for radio, film and television; provision of recreational facilities” in Class 41, it is to be noted that the same analysis applies as for the goods. WIMBLEDON is not an area where a given quality or other characteristics are essential for carrying out such services. The services producing, organising and staging sports competitions; production of sporting events for radio, film and television provision of recreational facilities, if designated by the term WIMBLEDON, might be linked in the mind of the consumer with a tennis championship or even with some successful football clubs, but the consumer will not therefore expect that “Wimbledon” denotes any geographical origin of the services. As far as the carrying out of the services is concerned, in the mind of the consumer the area of Wimbledon is not an area where a given quality or other characteristics of the services are essentially attributable to said place and it is not expected that currently or in the near future Wimbledon serves or will serve in trade for said services as a geographical indication in the sense of Art.7(1)(c) CTMR . Thus, regarding the services the mark does not fall foul of Art.7(1)(c) CTMR .

16. The fact that the term WIMBLEDON might have a high commercial value in view of its mental link by the consumer to the tennis championship organised by the CTM proprietor known worldwide, does not render WIMBLEDON a pure indication of geographic origin for any goods and services related—or not related—to the tennis competition. The consumer may associate the goods and services related—or not related—to tennis events with a famous tennis competition but he will not therefore consider that WIMBLEDON is a geographical indication of said goods and services. WIMBLEDON can serve in trade as a mark for all goods and services.

17. As the applicant argues that the CTM should be cancelled as local commerce should be entitled to use the term WIMBLEDON; it has to be clarified that in accordance with Art.12 CTMR the given monopoly right does not entitle the proprietor to prohibit a third party from using WIMBLEDON in the course of trade as an indication concerning the geographical origin, provided he uses it in accordance with honest practices in industrial or commercial matters.

Costs

18. Pursuant to Art.81(1) CTMR and r.94 IR , the party losing cancellation proceedings shall bear the fees and costs of the other party. **443*

Footnotes

- 1** Paragraph numbers in this judgment are as assigned by the court.